

Court No. - 36

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Sri Rajesh Tripathi, learned counsel for the respondent , the case is directed to be put up as fresh on 16.4.2011, so as to enable him to obtain instructions in the matter.

Order Date :- 8.4.2011

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Court No. - 36

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made on behalf of Shri Rajesh Tripathi, learned counsel for the respondents, the case is directed to be put up as fresh on 3.5.2011 so as to enable him to obtain instructions, as mentioned in the order dated 8.4.2011.

Order Date :- 18.4.2011

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Court No. - 37

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- Dvvn And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Bharati Sapru,J.

Sri Rajesh Tripathi, learned counsel has not been able to obtain instruction.
He may do so within one week.

Put up as fresh on 11.5.2011.

Order Date :- 4.5.2011

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Court No. - 36

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Mrs. Jayashree Tiwari,J.

It is submitted by Sri B.C. Rai, learned counsel for the petitioner that inspection was made in the premises of the petitioner on 13th May, 2010. Provisional Assessment was made on 22nd May, 2010. The petitioner submitted his objections before the concerned Executive Engineer against the Provisional Assessment on 3rd June, 2010. The said objections were not decided. Thereupon, the petitioner filed a complaint before the higher authority on 9th June, 2010. The petitioner, subsequently, also filed Notary Affidavit of the villagers along with an application on 12th August, 2010 before the concerned Executive Engineer.

It is submitted by Shri B.C. Rai that no order, disposing of the objections submitted by the petitioner, was passed by the concerned Executive Engineer, nor was any specific final Assessment Order passed.

It is submitted by Shri B.C. Rai that without complying with the requirements of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, Demand Notice dated 7th February, 2011 has been issued to the petitioner in this regard

Sri B.C. Rai, learned counsel for the petitioner has referred to paragraphs 9 and 16 of the Writ Petition, which are reproduced below :-

"9- That it is submitted that neither any date was fixed nor the provisional assessment order dated 22-05-2010 specified the date of hearing contemplated by the provisions of Clause 6.8 (b) (i) and

(ii) of U.P. Electricity Supply Code, 2005 (hereinafter referred to as "Supply Code, 2005") and also under Section 126 (3) of the Electricity Act, 2003 (hereinafter referred to as "Act, 2003").

16- That it is submitted that the written reply filed by the petitioner against the provisional assessment order dated 22-5-2010 have not been decided. The provisions of Section 126(3) of the Act, 2003 speaks about reasonable opportunity of hearing. A "reasonable opportunity of hearing" would mean opportunity to represent the case before the concerned authority in person either himself or through a representative including an advocate. In the case of **Khem Chand Versus Union of India reported in AIR 1958 SC 300**, a Constitution Bench of Hon'ble Supreme Court explained the meaning of reasonable opportunity" as; (i) an opportunity to defend himself by cross examining the witnesses produced against him and by examining himself or any other witnesses in support of his defence ; and finally (iii) an opportunity to make his representation as to why the proposed punishment should not be inflicted on him."

By the order dated 8th April, 2011 and the subsequent orders passed in this case, time was given to Shri Rajesh Tripathi, learned counsel for the respondents to obtain instructions in the matter.

Shri Subhash Gosain, holding brief for Shri Rajesh Tripathi, learned counsel for the respondents states that no instructions have so far been received by Shri Rajesh Tripathi.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 2 has been accepted by Shri Rajesh Tripathi.

Therefore, no notice need not be sent to the respondents.

Counter Affidavit on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 1st August, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, recovery proceedings against the petitioner pursuant to the Demand Notice dated 7th February, 2011 (Annexure 6 to the Writ Petition), will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 1,15,000/- with the respondent no.2.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present case.

In the event of default on the part of the petitioner in making the deposit, as directed above, this interim order will stand automatically vacated.

Order Date :- 18.5.2011
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Court No. - 37

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

As prayed, counter affidavit be filed within three weeks and no more.
List thereafter.

Order Date :- 1.8.2011

AM/-

Court No. - 37

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Vinod Prasad,J.

On the request of Sri Rajesh Tripathi, the case is passed over for today.

List in the next cause list.

Order Date :- 23.8.2011

AKG/-

Court No. - 37

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Sunil Hali,J.

Counter affidavit filed today be taken on record.

As prayed, rejoinder affidavit be filed within one week. List on 12th September 2011.

Order Date :- 30.8.2011

AM/-

Court No. - 37

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Surendra Kumar,J.

As prayed, rejoinder affidavit be filed within one week and no more.

List thereafter.

Order Date :- 19.9.2011

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Court No. - 21

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Rajesh Tripathi, Baleshwar Chaturvedi, Baleswar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

On the request of learned counsel for the petitioner, the case is passed over for the day.

List on 15.3.2023.

Order Date :- 21.2.2023

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(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Rajesh Tripathi, Baleshwar Chaturvedi, Baleswar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed, put up this case tomorrow.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

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Court No. - 21

Case :- WRIT - C No. - 20563 of 2011

Petitioner :- Rameshwar

Respondent :- DvvnI And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Rajesh Tripathi, Baleshwar
Chaturvedi, Baleswar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed challenging the demand notice dated 07.02.2011 issued by respondent No.2 for recovery of the amount assessed against the petitioner under the provisional assessment order dated 22.05.2010.

On 18.05.2011, the writ petition was entertained by this Court and an interim order was passed in favour of the petitioner staying the recovery proceedings subject the petitioner depositing a sum of Rs.1,15,000/- within four weeks. The matter was taken up yesterday and counsel for the petitioner took time to ascertain whether the said amount had been deposited by the petitioner or not. Today on matter being taken up, he states that he could not contact the petitioner despite best efforts and prays that the matter be heard.

The main ground of challenge was that the demand notice has been issued without there being any final assessment order in existence.

A counter affidavit has been filed by respondents 1 and 2 and in which it is not disputed that the final assessment order was passed on 29.06.2010. Meaning thereby that the demand notice was issued on the basis of provisional assessment notice and which renders the same illegal and accordingly, the same is quashed.

The writ petition stands allowed to the extent indicated above.

As regards the final assessment order, the petitioner will be at liberty to challenge the same in appropriate proceeding.

Order Date :- 16.3.2023

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(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)